

Paschimanchal Electricity Distribution Division E.D.D. Iind v. State of U.P.

Allahabad High Court · Single Judge · 29 March 2018 · Writ-C No. 11515 of 2018 · **Notice issued; Permanent Lok Adalat restoration order stayed till next listing.**

HEADNOTE

On a distribution licensee's writ against a Permanent Lok Adalat order restoring supply after disconnection for non-payment, the High Court issued notice and stayed that restoration till the next listing, because the plea that Clause 6.5 of the Electricity Supply Code, 2005 made the claim unmaintainable without deposit of the billed amount required consideration.

FACTUAL SUMMARY

The petitioner distribution licensee challenged a Permanent Lok Adalat order dated 24 January 2018 directing restoration of supply after a temporary disconnection for non-payment of bills. Counsel submitted that the Permanent Lok Adalat had not found whether previous bills were paid, and that under Clause 6.5 of the Electricity Supply Code, 2005 a claim petition was not maintainable without depositing the billed amount, so restoration without ensuring that deposit was illegal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pla-restoration-without-clause-6.5-deposit

HOLDING

The Court issued notice and stayed operation of the Permanent Lok Adalat's 24.1.2018 restoration order till the next date of listing, holding that the licensee's plea required consideration: under Clause 6.5 of the Electricity Supply Code, 2005 a claim petition was not maintainable without deposit of the billed amount, and restoration without ensuring that deposit was illegal. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PREVIOUS BILLS HAD BEEN PAID, AND WHETHER PERMANENT LOK ADALAT COULD RESTORE SUPPLY WITHOUT A CLAUSE 6.5 DEPOSIT

The Court held only that the matter requires consideration; merits of jurisdiction and restoration were left open. ¶ 1